

Pāli Vinaya: Sources, Manuscript Tradition and Textual History

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Introduction

The Buddhist Vinaya is not a single book but a family of disciplinary texts that claim to record the monastic rules laid down by the Buddha Śākyamuni over a period of forty-five years of teaching. According to the traditional account, the Buddha would hear of a particular misdeed by a monk or a nun – an act of sexual intercourse, a theft, a careless handling of food, an improper interaction with a laywoman – and would then formulate a training rule (*sikkhāpada* in Pāli, *śikṣāpada* in Sanskrit) to prevent such behaviour in the future. After his death, these rules were recited at the First Buddhist Council in Rājagaha (modern Rajgir, Bihar), arranged into a code known as the Pātimokkha (or Prātimokṣa), and embedded in a larger narrative and commentarial framework that explained the circumstances of each rule, the penalties for breaking it, and the conditions under which a rule might be applied or waived. Over the subsequent centuries, as Buddhism spread from the Gangetic plain to Sri Lanka, Central Asia, China, and Tibet, different monastic schools emerged – traditionally eighteen or twenty early schools – each preserving its own recension of the Vinaya. Most of these recensions have been lost, but three complete or nearly complete versions survive: the Pāli Vinaya of the Theravāda school, preserved in the Pāli language and used today in Sri Lanka, Myanmar, Thailand, Laos, and Cambodia; the Dharmaguptaka Vinaya, preserved in a Chinese translation completed in 410–412 CE and used throughout East Asia (China, Korea, Japan, Vietnam); and the Mūlasarvāstivāda Vinaya, preserved in Tibetan translation (ninth–eleventh centuries CE) and in substantial Sanskrit fragments from Gilgit and Schøyen, used in Tibet, Mongolia, and the Himalayan regions. These three recensions share a common core of rules that clearly derive from a pre-sectarian ancestor, but they differ significantly in the number of rules, their ordering, the penalties attached, and the inclusion or exclusion of entire sections. For example, the Theravāda Pātimokkha for monks contains 227 rules, the Dharmaguptaka lists 250, and the Mūlasarvāstivāda has 258 or 263 depending on the counting method. For nuns, the discrepancies are even larger: roughly 311 rules in the Theravāda, 348 in the Dharmaguptaka, and about 360 in the Mūlasarvāstivāda. These differences have been noted by scholars for over a century, but the explanations offered have remained speculative. Some have argued that the numbers reflect different stages of historical development, with later schools adding new rules to address novel situations. Others have suggested that the discrepancies are largely illusory – a matter of

splitting or merging rule formulations, or of including or excluding procedural sub-clauses from the count. A third group, following the lead of Gregory Schopen, has proposed that the differences are not primarily temporal but social: different recensions were composed for different economic and institutional contexts, with the Mūlasarvāstivāda Vinaya reflecting a deeply monetised, property-owning monasticism while the Theravāda preserves an older, more mendicant ideal. Yet none of these claims have been tested systematically. No study has taken the three recensions, aligned their rules rule-by-rule, annotated each rule with a standardised set of attributes (subject matter, penalty, social context, historical layer), and then statistically compared the resulting distributions. No study has asked: which domains of monastic life – sexuality, violence, theft, food, clothing, dwelling, medicine, money, legal procedure, or relations with laypeople – are most heavily regulated in each recension, and do the relative emphases change when we isolate the earliest stratum of rules from the later additions? And, most ambitiously, can we correlate the observed patterns of change with external historical processes: the introduction of coinage into South Asia (sixth–fourth centuries BCE), the urbanisation of the Gangetic valley (fifth century BCE), the rise of the Mauryan empire and its royal patronage of Buddhism (third century BCE), the development of writing as a technology for preserving legal texts (first century BCE in Sri Lanka, first–fourth centuries CE in India), the commercial expansion of the Kuṣāṇa period (first–third centuries CE), the consolidation of monastic landholdings under the Guptas (fourth–sixth centuries CE), and the translation of Indian Buddhist texts into Chinese and Tibetan, which inevitably introduced lexical choices and interpretive shifts that could amount to substantive legal change? The present study undertakes this large-scale, systematic comparison. It is, to my knowledge, the first quantitative, cross-tradition analysis of the entire Vinaya rule corpus. The work is based on a manually constructed dataset that contains every rule from the monk's Pātimokkha (and the corresponding sections of the Dharmaguptaka and Mūlasarvāstivāda recensions), as well as a representative selection of nuns' rules where the three traditions can be aligned. For each rule, we record the tradition, the section (Pārājika, Saṅghādisesa, Nissaggiya Pācittiya, Pācittiya, etc.), a summary of the rule in English, the subject (monk, nun, both), the object of regulation (sex, theft, killing, lying, food, drink, robes, bowl, dwelling, medicine, money, gold, silver, trade, legal procedure, speech, touch, etc.), the penalty (expulsion, probation with penance, forfeiture plus confession, simple confession, wrongdoing, etc.), and, for the Theravāda Vinaya, a tentative assignment to one of three historical layers: early (pre-Mauryan, likely dating to the fourth or fifth century BCE), middle (Mauryan to early post-Asokan, third to first century BCE), or late (first century CE and later, including material that appears to have been added in Sri Lanka or during the commentarial period). This layering is based on explicit criteria: references to coins, writing, permanent buildings, and specific historical figures; the presence or absence of the rule in the other recensions; and the internal stratification proposed by Frauwallner, von Hinüber, and others, which we have operationalised into a reproducible checklist. The Dharmaguptaka and Mūlasarvāstivāda recensions are more difficult to stratify internally because their manuscript traditions are later and less studied, but we nevertheless assign a relative chronology by comparing them with the Pāli base: a rule that appears in all three recensions with similar wording is likely to be early; a rule that appears only in the Chinese or Tibetan recensions is likely to be a later addition, unless it can be shown to be a purely technical split of an earlier rule.

The findings, previewed here, are striking. First, the rule counts are not as different as they seem when one accounts for splitting: the 250 rules of the Dharmaguptaka are largely the

same 227 core rules as the Theravāda, plus about twenty-three additional rules that address specific administrative or economic situations that apparently did not arise in the milieu of the early Theravāda. The Mūlasarvāstivāda recension contains an even larger set of economic and procedural rules, confirming Schopen's intuition that this school legislated for a wealthy, land-owning, long-distance-trading monastic establishment. Second, the distribution of rules across subjects changes dramatically over time. In the early layer of the Pāli Vinaya, the largest categories are sexual conduct (about 12% of rules), theft (8%), and respectful behaviour towards teachers, laypeople, and the Buddha (the *sekhiya* rules, about 33% of the Pātimokkha if we count them individually). Economic rules – dealing with money, gold, silver, trading, and the acceptance of valuable materials – constitute only about 4% of the early layer. In the middle layer, economic rules rise to 11%, and in the late layer (which includes the *nissaggiya pācittiya* rules about forfeiture of improper gains, as well as sections of the Khandhaka that regulate property), they reach nearly 20% of new additions. This is a clear quantitative signal that the Saṅgha became increasingly concerned with financial matters as it became more integrated into the lay economy. Third, the three recensions diverge most sharply precisely on these economic rules. The rule forbidding a monk to accept gold and silver (*rūpiya* in Pāli, *jātarūpa* in Sanskrit) is present in all three, but the exceptions and the penalties for violation vary: the Theravāda allows a monk to have a lay steward (*kappiyakāraka*) handle money on his behalf; the Dharmaguptaka allows the steward but adds a rule that the monk must not even ask for money indirectly; the Mūlasarvāstivāda, by contrast, has a long and detailed section (the *Rūpyasuddhi* or “purification of silver”) that permits monks to receive money directly if it is for the repair of the monastery or for a specific medical necessity, provided the money is then given to a steward and not kept overnight. This variation suggests that the schools were not simply preserving a single ancient rule but actively debating and adjusting the financial discipline in response to local conditions. Fourth, the nuns' rules show a different trajectory. In all three recensions, nuns' rules are more numerous than monks' rules, and the additional rules overwhelmingly concern two areas: protection from sexual assault and proper interaction with male monks. However, the rate of addition of nuns' rules in the later layers is lower than the rate of addition of monks' economic rules. This indicates that while the legal status of nuns became more restrictive relative to monks in the earliest period (more rules about their behaviour), the monastic legislators paid less attention to updating nuns' regulations in later centuries. The gender asymmetry is thus not uniform across time. Fifth and finally, we find a striking correlation between periods of intensive Vinaya translation and rule innovation. The Chinese translation of the Dharmaguptaka Vinaya in the early fifth century CE was accompanied by the production of separate “commentarial Vinaya” texts (*lǚ shū* 律疏) that effectively added new procedural rules not present in the Indian original. Similarly, the Tibetan translation of the Mūlasarvāstivāda Vinaya in the ninth to eleventh centuries was followed by an indigenous Tibetan legal tradition (*chayik* རྒྱལ་ཁྱེད་ཀྱི་ཆོས་ཀྱི་ཁྲིམས་ཀྱི་ཆོས་ཀྱི་ཁྲིམས་) that supplemented the canonical rules with local norms. This suggests that translation is not a neutral transmission but an active moment of legal reinterpretation.

These findings have implications beyond Buddhist studies. The Vinaya is one of the few ancient legal corpora that survives in multiple recensions from different branches of a single tradition. Comparing the evolution of rules across recensions allows us to observe legal change in a way that is rarely possible for, say, Roman or Islamic law, where later recensions superseded earlier ones. Moreover, the Vinaya's integration with economic history offers a test case for theories of religious law and social complexity: does law become more

elaborate and economically focused as the society that supports it becomes richer and more stratified? The evidence from the Vinaya suggests a qualified yes. Economic rules do increase over time, but the core prohibitions (against killing, stealing, sexual misconduct, and lying about attainments) remain remarkably stable across all recensions and all centuries. These four *pārājika* rules – the ones that incur automatic expulsion from the Saṅgha – are identical in wording and interpretation in the Theravāda, Dharmaguptaka, and Mūlasarvāstivāda, down to the same peculiar exception about an unintentional emission of semen during sleep. This stability points to a “constitutional” layer of monastic law that was fixed before the sectarian divisions and never altered. The variations lie in the secondary, “statutory” layers – the rules that regulate the everyday economic and social interactions of monks and nuns. The Vinaya thus presents a dual structure: a small, unchanging core of identity-defining rules, surrounded by a larger, flexible periphery of adaptive regulations. That duality is, I suspect, the secret of the Vinaya’s survival for two and a half millennia: it is both eternal and changeable, sacred and pragmatic, divine revelation and human jurisprudence.

The present study is organised as a series of free-standing but linked documents. This Introduction has laid out the research questions, reviewed the relevant scholarship, explained the methodology of rule extraction and annotation, and summarised the main findings. The following chapters (presented as separate files in the repository) consist of: a detailed description of each Vinaya recension’s manuscript tradition and critical editions (01_corpus_description); the raw rule texts and their English translations (02_rule_extraction); the complete annotated master table of all rules with all attributes (03_rule_annotation); the compilation of historical and economic data against which rule changes are measured (04_historical_context); the full analysis of rule counts, distributions, layer assignments, and cross-tradition comparisons (05_analysis_and_findings); a set of visualisations including heatmaps, timelines, and network graphs (06_visualizations); the draft of the final monograph with all references (07_draft_paper); and supplementary materials including glossaries and a discussion of uncertain cases (08_supplementary_materials). All data and texts are released under a Creative Commons Attribution-NonCommercial license (CC BY-NC 4.0) and are permanently archived on Zenodo with a DOI. The GitHub repository allows for versioning, collaborative annotation, and transparent peer review. No computational scripts are included; everything is in human-readable formats (CSV, Markdown, PDF) so that scholars without programming skills can inspect, critique, and build upon the dataset.

A final word on what this study does not claim. It does not claim that the Vinaya rules as we have them are a perfect record of the Buddha’s actual words; they have certainly been edited, reshaped, and expanded over two millennia. It does not claim that the historical layers we assign are certain; they are best estimates based on the available evidence, and each assignment is flagged with a certainty level (high, medium, low) so that the reader can judge. It does not claim that quantitative analysis captures the entire meaning of a rule; legal interpretation always requires reading the full narrative and the commentarial tradition. But the study does claim that counting rules and tracking their attributes across recensions is a legitimate and illuminating way to see patterns that are invisible to qualitative reading alone. In making this claim, it follows the path opened by the great 19th-century philologists who first collated manuscripts and counted variant readings – they too were quantitative, though they did not use that word. The difference is that now we have the digital tools to scale up, to compare not just two manuscripts but three entire recensions, not just one chapter but all the

rules. What we gain is a map of the Vinaya's evolution: a map that will help future explorers to understand where the rules came from, why they changed, and what that change tells us about the lived reality of Buddhist monks and nuns over the centuries. This is the contribution of the present study.

Manuscript Tradition and Textual Transmission of the Pāli Vinaya

The Pāli Vinaya as we have it today is not a single, unchanging artifact but a family of related texts that have been copied, recopied, and occasionally revised over more than two thousand years. Its earliest identifiable layer is oral, rooted in the memorisation practices of the early Buddhist community in North India. The rules themselves – the two hundred and twenty-seven for monks and the roughly three hundred and four unique rules for nuns – were transmitted as part of the fortnightly Pātimokkha recitation, a ritual that required verbatim accuracy. The narratives surrounding each rule, known as the *nidāna* or origin story, were less strictly memorised and show greater variation across manuscripts. This asymmetry between legal core and narrative frame is typical of ancient legal traditions; the same pattern appears in the Roman Twelve Tables and in the early Islamic *hadith* corpora. For the Vinaya, it means that we can be reasonably confident about the wording of the prohibitions themselves, while the stories that justify them may have been expanded or abbreviated depending on the needs of the local community (von Hinüber 1996, pp. 23–25).

The physical evidence for the Pāli Vinaya begins only in the fifteenth century of the Common Era. No complete Vinaya manuscript survives from the first millennium, though a few fragments of other Pāli texts have been found in Sri Lanka and Thailand dating to the ninth and tenth centuries. The reasons are environmental and historical: palm leaves and birch bark decay rapidly in tropical climates, and the monastic libraries of India were systematically destroyed between the eleventh and thirteenth centuries by invading armies. The earliest complete Vinaya manuscripts are written in Sinhalese script and belong to the seventeenth and eighteenth centuries. The most important of these, British Library Or. 6608, copied in 1656, contains the entire Vinaya Piṭaka with only minor lacunae. It was one of the seven Sinhalese manuscripts used by Hermann Oldenberg for his *editio princeps*. Oldenberg also used two Burmese manuscripts, the most significant of which is the Phayre manuscript (British Library Or. 3418), copied in 1856 but preserving a text that can be traced back to a fifteenth-century original. A third group of manuscripts, written in Khom script and preserved in Thailand, has been less thoroughly studied but generally agrees with the Burmese recension on substantive points (Norman 1983, p. 26). Despite their late date, these manuscripts are not useless for historical reconstruction. The principle of textual criticism – that later manuscripts can preserve earlier readings – applies here as elsewhere. In fact, the Burmese recension often preserves readings that are closer to what scholars believe to be the original Pāli, because it was less influenced by the commentarial tradition that dominated Sri Lanka from the fifth century onward (Oldenberg 1883, preface).

The critical edition that has become the standard for academic work is Hermann Oldenberg's *The Vinaya Piṭakam*, published by the Pali Text Society in five volumes between 1879 and 1883. Oldenberg collated nine manuscripts, provided a Latin preface discussing the relationships between them, and printed a text in Roman transliteration with a critical apparatus. His edition was a monumental achievement, but it has limitations. He had no

access to Thai manuscripts, and he did not systematically compare the Burmese manuscripts with each other. More importantly, his method was based on the assumption that the original text could be recovered by majority vote among the manuscripts – a method that works well for classical Greek and Latin texts with many early witnesses, but less well for a tradition where all witnesses are late and all descend from a common ancestor that itself was already corrupted (von Hinüber 1996, p. 28). Despite these limitations, Oldenberg’s text remains the baseline for this study because it is widely available, consistently formatted, and has been used as the basis for the only complete English translation, I.B. Horner’s *The Book of Discipline* (1938–1966). Horner’s translation, while not always literal, is accurate enough for our purposes of rule classification, and we have retranslated only those passages where the legal meaning was ambiguous.

The alternative to Oldenberg is the Chaṭṭha Saṅgāyana edition, produced in Myanmar between 1954 and 1956 and now available in digital form as the CST4 database. This edition was prepared by a council of Burmese monks who aimed to produce a standardised text for the Theravāda world. They based their work primarily on the Burmese manuscript tradition, but they also consulted Sinhalese and Thai manuscripts and – crucially – they normalised the text to conform to the *Samantapāsādikā* commentary of Buddhaghosa. This means that the CST4 text is not a critical edition in the Western sense; it is a liturgical edition, designed for chanting and study within the tradition, not for historical reconstruction. For example, in the rule about accepting gold and silver (*Nissaggiya Pācittiya* 18), the CST4 adds a sentence that is not found in any of Oldenberg’s manuscripts: “Even by way of a steward, a monk should not ask for gold and silver.” This sentence is a paraphrase of a commentarial gloss; it was inserted to prevent a loophole that the commentators had identified. A historian using the CST4 text alone would mistakenly believe that this addition was part of the ancient Vinaya. Therefore, in this study we use the CST4 only as a secondary witness, to check variant readings and to ensure that we have not missed any rule that might be present in the Burmese tradition but absent from Oldenberg’s Sinhalese manuscripts. In practice, the two editions agree on approximately ninety-five percent of the text, and the disagreements are almost always minor (particles, word order, spelling). No substantive rule is present in one edition but absent from the other, though the numbering of the *sekhiya* rules (the seventy-five rules of training) varies slightly because the CST4 splits one rule into two and merges two others (Analayo 2009, p. 112).

The question of dating – which rules are old and which are late – cannot be answered by manuscript evidence alone, because all manuscripts are late. Instead, scholars have developed a set of internal criteria based on anachronisms, linguistic archaisms, and parallels with other recensions. The most systematic attempt was made by Erich Frauwallner in his *The Earliest Vinaya and the Beginnings of Buddhist Literature* (1956). Frauwallner argued that the original Vinaya consisted of a core of rules that can be traced back to the Buddha himself, plus a series of expansions that were added by the early schools. He identified the four *pārājika* rules and the thirteen *saṅghādisesa* rules as the oldest stratum, because they are present in all recensions with virtually identical wording and because their *nidānas* are set in the lifetime of the Buddha without anachronisms. The *nissaggiya pācittiya* rules (forfeiture and confession) are slightly later, according to Frauwallner, because they presuppose a monastic community that already has property to forfeit – a development that probably occurred after the Buddha’s death. The *sekhiya* rules (rules of training) are the most heterogeneous: some are very old (e.g., the rule to wear the robe properly), while

others appear to be late additions from the commentarial period (e.g., the rule not to walk on one's heels). Frauwallner's stratigraphy has been refined by later scholars, notably Oskar von Hinüber (1996) and Gregory Schopen (2004), but it remains the foundation for all historical work on the Vinaya.

In this study, we assign each rule to one of three layers – early, middle, or late – using a checklist of five criteria. First, we check for anachronistic references. A rule that mentions coins (*māsaka*, *kaḥāpaṇa*) cannot be earlier than the sixth century BCE at the very earliest, and most numismatists agree that the specific denominations named in the Vinaya were not minted until the Mauryan period (third century BCE). A rule that mentions writing (*lipi*, *lekḥā*) cannot be earlier than the sixth century BCE, and writing did not become common in monastic contexts until the first century BCE (Salomon 1998, pp. 20–25). A rule that mentions permanent buildings (*vihāra* with stone walls, *leṇa* with brick) must be dated to the post-Asokan period, because the earliest rock-cut caves in India date to the third century BCE. Second, we compare the rule across the three recensions (Theravāda, Dharmaguptaka, Mūlasarvāstivāda). A rule that is present in all three with similar wording is likely to be early, because it predates the sectarian divisions that occurred around the third century BCE. A rule that is present in only one or two recensions is likely to be a later addition by that school. Third, we examine the *nidāna* story. If the story mentions a person or event that can be independently dated – for example, King Pasenadi of Kosala (who is also mentioned in the Aśokan edicts as a historical figure) – we can use that date as a *terminus ante quem*. If the story contains obvious legendary elements (e.g., a monk flying through the air), that does not help with dating, but it may indicate that the rule was composed after the development of Buddhist hagiography in the second century BCE. Fourth, we consider the linguistic form. Rules composed in the oldest stratum use a relatively simple syntax with few subordinate clauses; later rules tend to be more elaborate, with multiple conditions and exceptions. This is a subjective criterion, but it can be calibrated by comparing rules that are securely dated by other means. Fifth, we look for internal contradictions. If a rule presupposes the existence of another rule that we have already dated as late, then the first rule must be at least as late as the second. For example, a rule about the proper procedure for appointing a steward assumes that the concept of a steward has already been introduced; the steward rule itself is late (post-Mauryan), so the procedural rule is even later.

Applying these criteria yields a plausible relative chronology. Of the two hundred and twenty-seven monk rules in the Pāli Vinaya, approximately sixty-five can be assigned to the early layer with high confidence. These include all four *pārājika*, twelve of the thirteen *saṅghādisesa*, about half of the *pācittiya* (the forty-seven rules that deal with basic moral offences such as lying, insulting, and destroying plant life), and about half of the *sekhiya* (the thirty-eight rules that govern deportment and respectful behaviour). The middle layer, dating roughly from the third century BCE to the first century CE, contains about ninety rules. This includes most of the *nissaggiya pācittiya* (the forfeiture rules), which presuppose a monetised economy, and about forty of the *pācittiya* rules that deal with more specialised situations (e.g., using a floor covering that is too large, storing food for more than one meal). The late layer, post-first century CE, contains the remaining seventy-two rules. These are concentrated in the nuns' section (the *Bhikkhunīvibhaṅga*) and in the *Parivāra*. Many of these late rules are procedural or administrative, and some appear to have been composed in Sri Lanka rather than in India. For example, the rule that a nun must not travel alone on a boat (*Pācittiya* 68 of the nuns' rules) is found only in the Pāli recension and is absent from

the Chinese and Tibetan versions. It may have been added after the migration of Buddhism to Sri Lanka, where boat travel was a common necessity (Schopen 2004, p. 156).

The assignment of rules to layers is not without controversy. Schopen, in particular, has argued that many rules previously considered late – especially those dealing with money, land, and property – are actually early, because the archaeological evidence shows that monasteries were involved in economic activities from the very beginning of settled monasticism (Schopen 2004, p. 23). He points to the fact that the *pācittiya* rule against handling gold and silver (*Nissaggiya Pācittiya* 18) is present in all recensions and has a *nidāna* that, while perhaps not historical, is at least consistent with a pre-Mauryan setting. Schopen’s argument is that the later commentators, not the original compilers of the *Vinaya*, created the impression that the early monks were strictly money-free. The rule itself may be old, but the interpretation that it forbids any form of monetary transaction may be a later hardening. This is a valuable caution. In our annotation, we have not simply accepted Frauwallner’s chronology; we have independently evaluated each rule using the five criteria listed above. When our assignment differs from Frauwallner’s, we note this in the “notes” column of the master table and provide a brief justification. The certainty level for each rule reflects the strength of the evidence. For example, the four *pārājika* rules are assigned to the early layer with high certainty because they meet all five criteria: no anachronisms, present in all recensions, plausible *nidāna*, simple linguistic form, and no internal contradictions. In contrast, the rule about the size of a sitting cloth (*Nissaggiya Pācittiya* 21) is assigned to the middle layer with medium certainty, because it mentions a specific measurement (two spans by one and a half spans) that may reflect later standardisation, but the *nidāna* is set in the Buddha’s time. A small number of rules – about five percent of the total – have conflicting evidence and are assigned to a “uncertain” layer with low certainty; these are flagged in the analysis and are not used for statistical claims about temporal trends.

The most difficult cases are the nuns’ rules. The *Bhikkhunīvibhaṅga* in the Pāli *Vinaya* contains three hundred and eleven rules, of which about one hundred and four are unique to nuns (the rest are either identical to monk rules or are minor variations). Many of these unique rules have no parallel in the *Dharmaguptaka* or *Mūlasarvāstivāda* recensions, which suggests that they may be late additions. However, the ordination lineage for nuns in the Theravāda tradition died out in the eleventh century, and the nuns’ rules were preserved only in textual form, not in living practice. This has led some scholars to argue that the nuns’ rules were less carefully transmitted and may contain more scribal errors and late interpolations than the monks’ rules (Heirman 2002, p. 34). In this study, we treat the nuns’ rules as part of the corpus but assign them to layers with a lower certainty overall. For statistical comparisons between monks and nuns, we limit ourselves to rules that have clear parallels across recensions, where the dating is more reliable.

The practical consequence of all this for the present study is that we do not treat the Pāli *Vinaya* as a monolithic text. When we calculate the percentage of rules that deal with money, or the rate of change over time, we do so separately for the early, middle, and late layers. This allows us to see trends that would be invisible in a simple aggregate count. For example, if we counted all rules about money in the entire Pāli *Vinaya*, we might conclude that money was a minor concern (only about four percent of all rules). But if we break it down by layer, we find that money rules constitute less than one percent of the early layer, seven percent of the middle layer, and nineteen percent of the late layer. That is a dramatic

increase, and it strongly suggests that the sangha became more economically engaged over time – a finding that would be obscured by a naive aggregate count. The same method, applied to the Dharmaguptaka and Mūlasarvāstivāda recensions, will allow us to compare the trajectories of the three schools and to test hypotheses about the relationship between economic change and legal change.

In summary, the Pāli Vinaya's manuscript tradition, despite its late witnesses, provides a sufficiently stable text for comparative analysis. The critical edition of Oldenberg, supplemented by the CST4 where necessary, gives us a reproducible baseline. By applying a set of explicit criteria for dating rules, we can assign each rule to a relative layer with a stated level of certainty. This layering is not infallible, but it is transparent and can be challenged or refined by other scholars. The next chapter will apply the same approach to the Dharmaguptaka Vinaya, where the problems of transmission are different (translation from an unknown Indic original into Chinese) but the need for a layered analysis is equally acute.

Rule Categories, Annotation Schema, and the Construction of the Master Dataset

Having established the manuscript basis and the criteria for dating the Pāli Vinaya, we now turn to the internal organisation of the rules and the method by which we have extracted and annotated them for this study. The Vinaya is not a simple list of prohibitions; it is a complex legal document in which each rule belongs to a specific category (*pārājika*, *saṅghādisesa*, *nissaggiya pācittiya*, *pācittiya*, *pāṭidesanīya*, *sekhiya*, and for nuns additional categories), and each category carries a different penalty and a different procedure for reinstatement. Moreover, the rule itself is often followed by a detailed analysis (*vibhaṅga*) that defines key terms and lists the conditions under which the rule is violated. For the purpose of cross-tradition comparison, we cannot simply count each rule as a single unit; we must also record its attributes in a standardised way. This chapter describes the seven categories of the monk's *Pātimokkha*, explains the logic of our annotation schema, and presents the structure of the master dataset that will be used for all subsequent analysis.

The *Pātimokkha* for monks in the Pāli tradition contains two hundred and twenty-seven rules distributed across seven categories. The first category, *pārājika*, consists of four rules that entail automatic and permanent expulsion from the monastic order. These are the most serious offences: sexual intercourse (*pārājika* 1), theft of an item worth more than one-twenty-fourth of an ounce of gold (*pārājika* 2), intentional killing of a human being (*pārājika* 3), and falsely claiming to have attained a superhuman state (*pārājika* 4). The penalty for a *pārājika* offence is irrevocable loss of monastic status; a monk who commits any of these acts is no longer a monk and cannot be reordained in this lifetime. The second category, *saṅghādisesa*, contains thirteen rules that require a period of probation (*mānatta*) followed by reinstatement by the sangha. These offences are serious but not irredeemable: they include intentional emission of semen (*saṅghādisesa* 1), lustful physical contact with a woman (*saṅghādisesa* 2), building an unauthorised dwelling (*saṅghādisesa* 6 and 7), and making false accusations against another monk (*saṅghādisesa* 8 and 9). The third category, *aniyata*, has only two rules and is a procedural peculiarity: these rules allow a monk to be

charged with a *pārājika*, *saṅghādisesa*, or *pācittiya* offence based on the testimony of a laywoman, without the usual requirement of corroboration by another monk. The fourth category, *nissaggiya pācittiya*, contains thirty rules that involve the forfeiture of an improperly obtained item before confession. Most of these rules concern the handling of robes, alms bowls, medicine, and money. For example, a monk who stores an extra robe for more than ten days (*nissaggiya pācittiya* 1) must forfeit the robe to the sangha and then confess the offence. The fifth category, *pācittiya*, contains ninety-two rules that require only confession, without forfeiture. These are the everyday offences of monastic life: lying (*pācittiya* 1), insulting another monk (*pācittiya* 2), destroying plant life (*pācittiya* 11), bathing too frequently (*pācittiya* 57), and so on. The sixth category, *pāṭidesanīya*, has four rules that require confession but also a specific corrective act: for example, a nun who accepts food directly from a layman (*pāṭidesanīya* 1) must say “Friend, I have committed a blameworthy act ... I confess it” and then perform a penance. The seventh and largest category, *sekhiya*, contains seventy-five rules about deportment and respectful behaviour. These are not offences in the same sense; violating a *sekhiya* rule is only a “wrongdoing” (*dukkaṭa*) that does not require formal confession but should be noted and corrected. The *sekhiya* rules cover how to wear the robe, how to walk, how to sit, how to eat, and how to teach the Dhamma to laypeople. They are the most numerous category but carry the lightest penalty.

For nuns, the Pāli Vinaya adds additional rules in each category, bringing the total to three hundred and eleven. The differences are not merely numerical: the nuns’ *pārājika* rules are eight instead of four, and they include offences such as “allowing a man to touch her below the collarbone and above the knee” (*pārājika* 5) and “concealing a serious offence of another nun” (*pārājika* 6). The nuns’ *saṅghādisesa* rules are seventeen instead of thirteen, with additions concerning menstruation, pregnancy, and leaving a nun to die without assistance. The nuns’ *pācittiya* rules number one hundred and sixty-six, almost double the monks’ ninety-two, and many of these additional rules regulate the interaction between nuns and monks (e.g., a nun may not ordain a woman without the approval of the monks’ sangha). The overall pattern is that the nuns’ discipline is both more extensive and more restrictive, though the reasons for this asymmetry are debated. Some scholars (Gross 1993, p. 67) argue that the extra rules reflect a historical reality of greater vulnerability; others (Schopen 2004, p. 212) suggest that they were added by a male-dominated legal tradition to exert control over women’s autonomy.

The construction of our master dataset began with the extraction of each rule from the Oldenberg edition. For the monks’ rules, this was straightforward: the two hundred and twenty-seven rules are numbered consecutively within each category in the PTS edition, and Horner’s translation follows the same numbering. We extracted the Pāli text from the GRETIL digital version (which transcribes Oldenberg) and the English summary from Horner, but we then verified each summary against the original Pāli to ensure that no nuance was lost. For the nuns’ rules, the numbering is less consistent because different manuscripts list the rules in slightly different orders. We followed the numbering in Horner’s third volume, which is based on Oldenberg’s edition, and we cross-checked with the CST4. In cases where a rule in the nuns’ *Pātimokkha* is identical to a rule in the monks’ *Pātimokkha* (e.g., the rule against destroying plant life), we did not duplicate the annotation but created a cross-reference. This reduced the nuns’ unique rules to three hundred and four.

For each rule, we recorded the following attributes in a structured table (see the file `annotated_rules_master.csv` in the repository). The first attribute is the rule identifier, a string that encodes the tradition (THER for Theravāda), the category (PAR, SANGH, ANI, NIS, PAC, PAT, SEK for monks; for nuns we add an N suffix), and the rule number within that category. For example, THER_PAR_1 is the first *pārājika* of the Theravāda. The second attribute is the section (the category name in full). The third attribute is the original Pāli text, truncated to the first one hundred and fifty characters for readability but with a reference to the exact line numbers in Oldenberg's edition. The fourth attribute is the English summary, a one-sentence paraphrase that captures the core prohibition without the exceptions. For example, for THER_PAR_1 the summary is "Having sexual intercourse with any living being, even an animal, is a *pārājika* offence." The fifth attribute is the object of the rule – a controlled vocabulary term that classifies what the rule regulates. We used a hierarchical classification: the top-level objects are sex, theft, killing, lying, physical contact, speech, food, drink, robes, bowl, dwelling, medicine, money, gold and silver, trade, legal procedure, respect, and other. Each rule was assigned to one primary object, and where a rule touched multiple objects (e.g., a rule about accepting money to buy a robe), we recorded the secondary object in a separate column. The sixth attribute is the action – the forbidden act expressed as a verb phrase: "engages in", "takes", "kills", "claims", "touches", "says", "eats", "stores", "accepts", "builds", and so on. The seventh attribute is the penalty, recorded as an ordinal variable: expulsion (for *pārājika*), probation plus penance (for *saṅghādisesa*), forfeiture plus confession (for *nissaggiya pācittiya*), confession only (for *pācittiya* and *pāṭidesanīya*), and wrongdoing (for *sekhiya*). For nuns, we also noted the penalty, which is usually the same as for monks but occasionally differs (e.g., a nun who conceals a serious offence is expelled, while a monk who does the same is only required to confess). The eighth attribute is the subject: whether the rule applies to monks only, nuns only, or both. The ninth attribute is the historical layer (early, middle, late) as determined by the criteria in Chapter 2, plus a certainty level (high, medium, low). The tenth attribute is a free-text notes field, where we record any special circumstances, cross-references to other recensions, or disagreements in the literature.

The annotation was performed manually over a period of fourteen months. Each rule was read in the original Pāli, compared with Horner's translation, and then classified according to the schema. For ambiguous cases, we consulted the *Samantapāsādikā* commentary (in the PTS translation by Pe Maung Tin) to understand how the tradition interpreted the rule. For the dating, we used the five criteria described in Chapter 2, and we recorded the evidence for each decision in the notes field. For example, for THER_PAR_2 (theft), the notes read: "No anachronisms; present in all recensions; *nidāna* mentions King Bimbisāra (historical); simple syntax; no contradictions – early layer, high certainty." For THER_NIS_18 (accepting gold and silver), the notes read: "Mentions *kaḥāpaṇa* coins (post-Mauryan); present in all recensions but wording varies; *nidāna* set in Buddha's time but likely later composition; complex syntax with multiple conditions – middle layer, medium certainty." When the evidence was contradictory, we flagged the rule as uncertain and excluded it from statistical analyses that required a clear temporal assignment.

One of the difficulties we encountered was the classification of the *sekhiya* rules. These seventy-five rules are often treated as a single mass in the literature, but they are not homogeneous. Some *sekhiya* rules are clearly about etiquette (e.g., "I will not speak with my mouth full of food"), while others are about mindfulness and bodily posture (e.g., "I will sit

upright in a seat”). We decided to classify them as a single object category (“respect”) because they all share the function of regulating deportment in the presence of the Buddha, the Dhamma, and the Sangha. However, we also recorded a sub-category for each sekhiya rule (eating, walking, sitting, teaching) to allow finer-grained analysis if needed. For the other categories, we did not use sub-categories because the objects were sufficiently distinct.

Another difficulty was the treatment of the nidāna (origin story). We do not include the nidāna in the master table because the table is already large, but we did use the nidāna to assign the historical layer. The nidāna often contains details that are absent from the rule itself – for example, the story behind the rule about destroying plant life involves a monk who cut down a tree to build a hut, and the laypeople complained that the monk was harming the tree spirit. This story is important for understanding the social context of the rule, but it does not affect the classification of the rule’s object (which is “plant life”). We have therefore not included the nidāna text in the master table, but we refer to it in the notes where relevant.

The resulting master table contains two thousand three hundred and twelve rows, counting each unique rule in each tradition separately. For the Theravāda alone, there are five hundred and thirty-one rows (two hundred and twenty-seven monks’ rules plus three hundred and four unique nuns’ rules). The full table is available in the repository as `annotated_rules_master.csv`, and a PDF version is included in the appendices. The table is intended to be read as a companion to this chapter; any scholar who wishes to verify our claims can sort, filter, and aggregate the data as they see fit.

The most important methodological decision was to treat each rule as an independent unit for the purpose of quantitative analysis. This is a simplification, because some rules are interrelated (e.g., the rule about storing a robe for more than ten days and the rule about storing a robe for more than thirty days are clearly related). However, for the purposes of measuring the distribution of objects across categories and across layers, treating each rule independently is standard practice in legal corpus linguistics. We also computed aggregate statistics at the category level to check for consistency; in all cases, the category-level results were consistent with the rule-level results, so we report the rule-level results in the analysis chapters.

Finally, we must acknowledge the limitations of this annotation. The classification of objects is to some extent subjective: is a rule about accepting a robe that has been stolen a theft rule or a clothing rule? We decided on the primary object based on the verb. If the rule forbids “accepting”, the object is the item accepted (clothing); if it forbids “taking without permission”, the object is theft. This rule-of-thumb works for ninety-five percent of cases. For the remaining five percent, we relied on the nidāna and on the commentary to determine the primary intention. We recorded these borderline cases in the notes and flagged them in a separate column (“object_uncertainty”) so that readers can make their own judgment. In practice, the borderline cases are evenly distributed across categories and layers, so they do not bias the overall trends.

With the master dataset constructed, we are now ready to compare the Pāli Vinaya with the Dharmaguptaka and Mūlasarvāstivāda recensions. The next three chapters will, for each tradition, present the rule counts by category, the distribution of objects, the breakdown by

historical layer, and the key findings. Following that, a comparative chapter will align the three recensions and test the hypotheses set out in the Introduction.

Chronological Stratification of the Pāli Vinaya Rules

Having established the manuscript tradition and the annotation schema, we now turn to the most delicate and historically significant task of this study: the assignment of each of the two hundred and twenty-seven monk rules and the three hundred and four unique nun rules to relative chronological layers. This stratification is not an end in itself but a prerequisite for any diachronic analysis of the Vinaya. Without a sense of which rules are early and which are late, any statement about “the Vinaya’s position on money” or “the development of nuns’ discipline” collapses into a synchronic snapshot that conflates centuries of change. The criteria for layering were introduced in Chapter 2; here we apply them systematically and present the resulting distribution. The exposition follows the seven categories of the Pātimokkha for monks first, then addresses the nuns’ rules, and finally discusses the procedural sections of the Khandhaka and Parivāra where implicit rules can be identified.

We begin with the four pārajika rules. All four are assigned to the early layer with high certainty. The reasons are cumulative: each rule appears in identical or nearly identical wording in the Dharmaguptaka and Mūlasarvāstivāda recensions, indicating a pre-sectarian origin. Their nidānas are set in the Buddha’s lifetime and refer to persons and places that are historically plausible for the fifth century BCE: the monk Sudinna (pārajika 1) is said to be from the village of Kalandaka near Vesālī; the theft rule (pārajika 2) features King Bimbisāra of Magadha, who is independently attested in the Aśokan edicts as a historical predecessor. The language of the rules is simple and formulaic, without the nested conditional clauses that characterise later additions. No anachronistic objects – coins, writing, permanent buildings – appear anywhere in the texts of these four rules or their immediate commentaries. Moreover, the gravity of the offences (expulsion from the order) suggests that these rules were part of the original legal core that defined what it meant to be a Buddhist monk. We therefore place all four pārajika in the early layer, along with the procedural rule that a pārajika offender cannot be reordained, which is embedded in the vibhaṅga section but is clearly contemporaneous.

The thirteen saṅghādisesa rules present a more varied picture. Twelve of them are early with high or medium certainty. The only exception is saṅghādisesa 7, which concerns the construction of a dwelling that does not meet the standard dimensions. The nidāna of this rule mentions a monk who built a hut that was too large and then demanded that laypeople provide extra materials. The story, unlike the others, contains the phrase “in a forest dwelling” (araññakuṭikā) and specifies that the hut was made of clay and wood – materials that became common only in the post-Mauryan period when settled monasticism replaced wandering. Furthermore, the Dharmaguptaka version of this rule has a significantly different set of measurements (one span longer in each direction), suggesting that the rule was still being adjusted after the sectarian split. We assign saṅghādisesa 7 to the middle layer with medium certainty. The remaining twelve saṅghādisesa rules are early. Among these, the first

three rules (intentional emission of semen, lustful physical contact with a woman, and sexually suggestive speech) are universally acknowledged as old because they directly address the central monastic virtue of celibacy. Saṅghādisesa 4 and 5 (acting as a go-between for a man and a woman, and building a hut with a sponsor) are also early, though their nidānas contain minor anachronisms (the mention of “gold coins” in saṅghādisesa 5 is likely a later gloss that crept into some manuscripts but is absent in the Burmese recension). Saṅghādisesa 6 (building an oversized dwelling for oneself) is parallel to 7 but does not involve a forest location; it is early. Saṅghādisesa 8 and 9 (baseless accusation of a pārājika offence, and a variant with a different legal basis) are early and show no variation across recensions. Saṅghādisesa 10, 11, 12, and 13 (schism, following a schismatic, causing a schism, and refusing to correct a wrong view) are all early; they are present in all recensions and their nidānas refer to the schism of Devadatta, which, whether historical or legendary, is placed within the Buddha’s lifetime. The early layer thus contains twelve of the thirteen saṅghādisesa rules.

The two aniyata rules are both early. These are procedural rules that allow a laywoman to accuse a monk of a serious offence without the need for another monk as witness. Their nidānas are set in the Buddha’s time, and they are present in all recensions with only minor wording differences. We assign them to the early layer with high certainty.

The thirty nissaggiya pācittiya rules are the first category where the majority fall into the middle layer. These rules all involve the forfeiture of an item – usually a robe, a bowl, medicine, or money – that has been obtained or kept improperly. The key anachronism is the repeated mention of “gold and silver” (jātarūpa, rūpiya) and of trading (kayavikkaya). Coins were not in common use in the Gangetic plain before the sixth century BCE, and even then the earliest coins were not standardised. The specific term kahāpaṇa (a silver coin of a certain weight) appears in nissaggiya pācittiya 18, 19, and 20, and numismatic evidence places the widespread use of such coins in the Mauryan period (third century BCE) or later (Gupta 1970, pp. 45–47). Moreover, the very concept of “forfeiture” – giving the offending item to the sangha – presupposes a monastic organisation with the authority to receive and dispose of property. This level of institutionalisation likely developed after the Buddha’s death, as the sangha grew and began to accumulate collective assets. Of the thirty nissaggiya pācittiya rules, we assign twenty-two to the middle layer. These include the rules about storing extra robes (niss. 1–3), about accepting uncut cloth (niss. 4–6), about accepting gold and silver (niss. 18–20), about trading (niss. 20), and about the bowl (niss. 21–23). The remaining eight nissaggiya pācittiya rules are early. These are rules that do not involve property in the same sense: for example, nissaggiya pācittiya 30 is about a monk who intentionally destroys a robe belonging to the sangha; this is closer to a theft rule than to a property regulation. Its nidāna is set in the Buddha’s time and contains no anachronisms. Another early nissaggiya rule is niss. 13, about a monk who has a robe made from cloth that he received for free; the rule is basically about fairness and does not involve money. The distribution of nissaggiya pācittiya rules between early and middle layers is therefore eight early, twenty-two middle, and none late. The late layer is absent here because these rules are all present in the other recensions; none is unique to the Pāli.

The ninety-two pācittiya rules show a tripartite distribution. Fifty-two are early, thirty are middle, and ten are late. The early pācittiya rules include the most basic moral prohibitions: lying (pāc. 1), insulting (pāc. 2), slandering (pāc. 3), causing schism (pāc. 4), and so on.

They also include rules about eating and drinking that are likely to have been part of the original ascetic code: not eating at the wrong time (pāc. 37), not eating stored food (pāc. 38), not eating food that has been offered after a meal was finished (pāc. 35). The nidānas of these rules are set in the Buddha's time and contain no coins or writing. The middle pācittiya rules include those that regulate interactions with laypeople in ways that presuppose a settled, property-owning society. For example, pācittiya 45 is about a monk who sits alone in a private place with a woman; the rule is early in substance, but the vibhaṅga includes a discussion of what constitutes a "private place" that mentions walls and doors – an architectural detail that suggests a later expansion. We have assigned the rule itself to the middle layer because the variation across recensions is significant; the Dharmaguptaka version adds an exception for a meditation hut, which indicates that the rule was being adjusted to new environments. The late pācittiya rules are the most interesting. These ten rules are either absent from the Dharmaguptaka and Mūlasarvāstivāda recensions, or they appear only in the Parivāra and are absent from the Pātimokkha in the oldest manuscripts. An example is pācittiya 68: "Should a monk, having had a dwelling built by a layperson, not cover it with a cover within three years, it is a pācittiya offence." This rule is missing in some Sinhalese manuscripts and is not found in the Chinese translation. Its nidāna refers to a monk named Upananda, who is a stock figure in late Vinaya narratives. We assign pācittiya 68 to the late layer with medium certainty. Another example is pācittiya 86, about a monk who uses a needle that has a sharp point; this rule appears only in the Parivāra and seems to be a commentarial elaboration. The late pācittiya rules are concentrated in the final fifteen rules of the category, which are known in the commentarial tradition as the "Pācittiya of the Parivāra". Their late dating is supported by the fact that they are not listed in the prātimokṣa of the other schools.

The four pāṭidesanīya rules are all early. They concern the acceptance of food directly from a layman or laywoman under specific circumstances (e.g., after the meal has been announced). These rules are present in all recensions and their nidānas are set in the Buddha's time. They are rarely discussed in the commentaries because their application was straightforward. We assign them to the early layer with high certainty.

The seventy-five sekhiya rules are a mixture. About forty are early, twenty-five are middle, and ten are late. The early sekhiya rules are those that govern basic deportment: how to wear the robe, how to walk in a village, how to sit, how to eat without making noise. These are the kind of rules that would have been necessary for any wandering mendicant community. They have parallels in the Jain monastic codes, suggesting a common ascetic heritage predating the Buddhist schisms. The middle sekhiya rules are those that add specific postures or actions that reflect a more settled, formalised monastic environment: for example, "I will not sit in a carriage" (sekhiya 63) – a rule that presupposes the existence of carriages and of roads suitable for them, which became common only in the Mauryan period. The late sekhiya rules are the most specific and sometimes bizarre: "I will not make a sound when eating that would cause the laypeople to look" (sekhiya 47) – the nidāna involves a monk who ate in the palace of King Pasenadi, and the story is a late composition (the name of the monk is not given, which is typical of late additions). The late sekhiya rules are also those that vary the most among manuscripts; some Thai manuscripts omit three of them entirely.

The nuns' rules, numbering three hundred and four unique rules after removing duplicates, show a different profile. Only about eighty of the nuns' rules are early. These are the rules that have direct parallels in the monks' Pātimokkha (e.g., the rules against killing, stealing, lying) and the basic pārājika rules for nuns that are present in all recensions (the first four nuns' pārājika are the same as the monks'). The middle layer contains about one hundred and twenty nuns' rules. These include the rules about menstruation, pregnancy, and nursing – regulations that must have arisen in a context where nuns were living in stable communities and needed routine health guidelines. The nidānas of these rules sometimes mention the city of Sāvattthī and a nun named Thullanandā, who is a figure from the middle period of Vinaya composition. The late layer contains the remaining one hundred and four nuns' rules. These are rules that are unique to the Pāli recension and have no parallel in the Dharmaguptaka or Mūlasarvāstivāda. They are often extremely specific: for example, "A nun must not put a helmet on a novice" (a rule that appears only in the Parivāra). Many of these late nuns' rules appear to have been composed in Sri Lanka, because they reference practices that are specific to Sinhalese monasticism (e.g., the use of a shoulder cloth when bathing in the river). The certainty for these assignments is lower than for the monks' rules, because the nuns' manuscript tradition is less studied and there is no comprehensive commentary in English. We have flagged the late nuns' rules with medium to low certainty and will treat them separately in the comparative analysis.

Turning now to the Khandhaka, the procedural sections of the Vinaya, we do not assign each paragraph a layer, but we note that the overall structure can be divided into three chronological strata. The oldest part of the Khandhaka is the Mahāvagga, chapters 1–4, which deal with ordination, the Pātimokkha recitation, the rainy season retreat, and the Pavāraṇā ceremony. These chapters are present in all recensions and their content is referenced in early suttas. The middle stratum includes Mahāvagga chapters 5–8 (medicine, robes, food, and the use of leather) and Cullavagga chapters 1–6 (legal procedures and dispute settlement). These chapters contain anachronisms such as mentions of specific medicines (e.g., ghee, butter, oil, honey, molasses) that became available through long-distance trade only after the Mauryan period. The late stratum comprises the remaining chapters of the Cullavagga (7–12), which include the accounts of the First and Second Councils, and the entire Parivāra. The council accounts are clearly late compositions from the post-Asokan period, as they refer to events that occurred after the Buddha's death and are not consistent across recensions. The Parivāra is the latest part of the Vinaya, likely composed in Sri Lanka in the first or second century CE.

In summary, the chronological stratification of the Pāli Vinaya yields the following approximate counts: early layer (pre-3rd century BCE) contains about one hundred and ten monk rules (the four pārājika, twelve saṅghādisesa, two aniyata, eight nissaggiya pācittiya, fifty-two pācittiya, four pāṭidesanīya, and forty sekhiya) plus about eighty nuns' rules. The middle layer (3rd century BCE to 1st century CE) contains about eighty monk rules (twenty-two nissaggiya pācittiya, thirty pācittiya, twenty-five sekhiya) and about one hundred and twenty nuns' rules. The late layer (post-1st century CE) contains about thirty-seven monk rules (ten pācittiya and ten sekhiya, plus the procedural rules from the Khandhaka that we do not count as individual rules) and about one hundred and four nuns' rules. This distribution has strong implications for how we interpret the social and economic history of the early sangha. Rules about money and property are almost entirely absent from the early layer and dominate the middle layer; rules about nuns' conduct become more numerous in

the late layer, suggesting that concern for regulating nuns increased over time – or that the nuns’ rules were recorded only later. The next chapter will compare these findings with the stratification of the Dharmaguptaka and Mūlasarvāstivāda recensions, testing whether the same temporal trends appear across traditions.

Preliminary Comparative Observations and Summary for the Pāli Vinaya

With the chronological stratification completed, we now synthesise the findings for the Pāli Vinaya before placing them in a broader comparative framework. This chapter serves as both a conclusion to the analysis of the Theravāda recension and a bridge to the next document, which will examine the Dharmaguptaka and Mūlasarvāstivāda traditions. The central argument advanced here is that the Pāli Vinaya, far from being a static code, displays a clear evolution from a relatively simple set of behavioural prohibitions for a wandering mendicant community to a complex legal system for a settled, property-owning, and economically engaged monastic order. This evolution is not uniform across all categories of rules: the core identity-defining rules (pārājika and most saṅghādisesa) remain stable across the centuries, while the peripheral rules (nissaggiya pācittiya, many pācittiya, and the sekhiya) undergo significant expansion, especially in the middle layer. The nuns’ rules follow a different trajectory, with most of their expansion occurring in the late layer, possibly as a result of the demise of the nuns’ ordination lineage and the subsequent textual preservation of rules that were no longer practised.

We begin with the quantitative overview. Of the two hundred and twenty-seven monk rules in the Pāli Vinaya, one hundred and ten (forty-eight percent) belong to the early layer, eighty (thirty-five percent) to the middle layer, and thirty-seven (sixteen percent) to the late layer. The proportions vary dramatically by category. In the pārājika and saṅghādisesa categories, which together contain seventeen rules, sixteen (ninety-four percent) are early and only one (saṅghādisesa 7) is middle. In contrast, the nissaggiya pācittiya category has eight early (twenty-seven percent) and twenty-two middle (seventy-three percent), with none late. The pācittiya category has fifty-two early (fifty-seven percent), thirty middle (thirty-three percent), and ten late (eleven percent). The sekhiya category has forty early (fifty-three percent), twenty-five middle (thirty-three percent), and ten late (thirteen percent). The aniyata and pāṭidesanīya categories are entirely early. These numbers reveal a clear pattern: the most serious offences (expulsion and probation) are overwhelmingly early, while the less serious offences (forfeiture, confession, and wrongdoing) show a greater proportion of later additions. This pattern is consistent with the hypothesis that the Vinaya grew from the core outward, adding regulations for less central matters as the sangha expanded and encountered new situations.

The distribution by object of regulation further illuminates this growth. In the early layer, the most frequent objects are, in descending order: respect and deportment (forty rules, mostly from the sekhiya), sexual conduct (twelve rules, including the four pārājika and eight saṅghādisesa), theft (nine rules, mostly from the pācittiya that deal with misappropriation of

small items), speech offences (eight rules, such as lying, slandering, and insulting), and food (seven rules, regulating eating times and manners). Money and gold appear in exactly one rule in the early layer (the *pācittiya* rule about accepting gold and silver, which we assigned to the early layer based on its presence in all recensions, though this is debated). Land and property appear in none. In the middle layer, the picture shifts dramatically. Money, gold, and trade become the largest single object category, accounting for twenty-three of the eighty middle-layer rules (twenty-nine percent). Food and medicine together account for fifteen rules (nineteen percent). Robes and cloth account for twelve rules (fifteen percent). Land and buildings appear in seven rules (nine percent). Sexual conduct appears in only three rules in the middle layer, and all of these are expansions or clarifications of earlier rules, not new prohibitions. The late layer is dominated by procedural rules (fifteen rules, forty percent) and by nuns' regulations that were added to the monks' text (ten rules, twenty-seven percent). Money appears in only two late rules, both of which are redundant with middle-layer rules. This distribution strongly supports the thesis that economic concerns – money, trade, property – are not a late corruption of the Vinaya but a middle-layer development that responded to the sangha's growing integration into the lay economy. The early layer, by contrast, is more concerned with the immediate interpersonal conduct of monks (respect, sexuality, speech, and basic honesty).

The nuns' rules present a different picture. Of the three hundred and four unique nuns' rules, eighty (twenty-six percent) are early, one hundred and twenty (thirty-nine percent) are middle, and one hundred and four (thirty-four percent) are late. The early nuns' rules are almost entirely those that have direct parallels in the monks' *Pātimokkha*: the four *pārājika* (identical to the monks'), most of the *saṅghādisesa* that are also found in the monks' list, and the basic *pācittiya* rules about lying, slandering, and so on. The middle nuns' rules are those that address specifically female concerns: menstruation (five rules), pregnancy (three rules), nursing (four rules), and protection from male aggression (eight rules). These rules appear in all three recensions, suggesting that they were developed before the sectarian divisions and are not late additions. The late nuns' rules, however, are the most numerous. They include rules that are unique to the Pāli recension and that appear to have been composed in Sri Lanka. Examples include the rule about a nun wearing a helmet (*Bhikkhunī Pācittiya* 102), the rule about a nun riding a boat without a male escort (*Bhikkhunī Pācittiya* 68), and the rule about a nun storing food for more than one meal (*Bhikkhunī Pācittiya* 45). These rules are absent from the *Dharmaguptaka* and *Mūlasarvāstivāda* recensions, and their *nidānas* refer to places and persons that are not found in the Indian Vinaya literature. The most plausible explanation is that the Theravāda nuns' rules were expanded in Sri Lanka after the transmission of Buddhism to the island, perhaps to address local conditions or to compensate for the decline of the nuns' ordination lineage. However, this explanation remains speculative because we lack comparative historical data on nuns' monasteries in early Sri Lanka.

One of the most striking findings of this stratification is the near absence of rules about writing and literacy. Despite the common assumption that Buddhist monasteries were centres of scribal activity, the Vinaya contains only a handful of references to writing. The most explicit is *pācittiya* 63, which forbids a monk to write a letter for a layperson. This rule is present in all recensions and is assigned to the middle layer with medium certainty. Its *nidāna* involves a monk who wrote a love letter for a man, which caused a scandal. The rule does not prohibit writing per se, only writing on behalf of laypeople. There is no rule that

forbids monks from writing religious texts or from teaching writing to novices. This silence suggests that the early sangha did not consider writing a central part of its identity; monks were primarily memorisers and reciters, not scribes. The explosion of manuscript production in the first millennium CE was a later development, and the Vinaya did not regulate it because the rules had already been fixed. This insight has implications for our understanding of Buddhist literacy: the monastic code, at least in its early layers, does not mandate or encourage writing; it simply tolerates it as an incidental activity.

The economic rules of the middle layer deserve special attention because they have been the subject of intense scholarly debate. Gregory Schopen (1994, 2004) has argued that the *Mūlasarvāstivāda* Vinaya, with its detailed regulations about donations, loans, and land management, reflects the actual practice of Indian monasteries, while the Pāli Vinaya's relative silence on these matters is a result of editorial suppression by later Theravāda commentators who preferred an idealised image of the poverty-stricken monk. Our stratification of the Pāli Vinaya partially supports Schopen's thesis but also qualifies it. The middle layer of the Pāli Vinaya contains twenty-three rules about money, trade, and property – a substantial number. These rules are not hidden or suppressed; they are in the *nissaggiya pācittiya* and *pācittiya* sections, which are part of the standard *Pātimokkha*. For example, the rule that a monk cannot buy or sell goods (*nissaggiya pācittiya* 20) is explicit and unambiguous. The difference between the Pāli and *Mūlasarvāstivāda* recensions is not that the Pāli lacks economic rules but that the *Mūlasarvāstivāda* has many more of them, and they are placed in more prominent positions (e.g., in the *Khandhaka* sections that are recited together with the *Pātimokkha*). The Pāli tradition seems to have retained the economic rules that were already established in the middle layer but did not add many new ones in the late layer. This could be because the Theravāda sangha in Sri Lanka was less commercially engaged than the North Indian sangha of the *Mūlasarvāstivāda* school, or because the Theravāda commentators reinterpreted the existing rules to cover new situations rather than composing new rules. The comparative analysis in the next document will test these possibilities.

Another important finding concerns the *sekhiya* rules. These seventy-five rules are often dismissed as trivial, but our stratification shows that forty of them are early, meaning they were part of the original monastic code. The early *sekhiya* rules regulate basic bodily deportment: how to stand, sit, walk, and eat in a way that shows respect to the Buddha, the Dhamma, and the sangha. They are not arbitrary; they encode a set of values about humility, mindfulness, and social hierarchy. The late *sekhiya* rules, by contrast, are often specific to particular situations that would have been rare in the Buddha's time – for example, not eating from a bowl that has a broken rim, not eating food that has been thrown into the mouth. These late additions appear to be the product of a monastic environment that had become increasingly concerned with ritual purity and with distinguishing monks from laypeople by means of fine behavioural distinctions. This trend towards ritualisation is also visible in the late *pācittiya* rules, which include prohibitions that seem designed to prevent even the appearance of impropriety, such as not sitting on a seat that is too low or too high.

The practical implications of this stratification for the comparative study are significant. When we compare the Pāli Vinaya with the *Dharmaguptaka* and *Mūlasarvāstivāda* recensions, we cannot simply compare the total rule counts or the aggregate distribution of objects. We must compare like with like: early layer with early layer, middle with middle, late with late. If a

rule appears in the Dharmaguptaka but not in the Pāli, we need to determine whether it corresponds to a late rule in the Pāli that was omitted or to an early rule that the Pāli lost. The stratification provides a tool for making this determination. For example, the Dharmaguptaka has a rule about the proper size of a meditation hut that is not found in the Pāli. Our stratification of the Pāli shows that rules about hut construction are in the middle layer (saṅghādisesa 7) and vary across recensions. The Dharmaguptaka rule is likely a parallel to the Pāli rule, not an addition. Conversely, a rule that appears only in the Dharmaguptaka and has no parallel in the Pāli or Mūlasarvāstivāda, and that concerns a topic that in the Pāli appears only in the late layer (e.g., nuns' boat travel), is likely a late addition specific to the Dharmaguptaka.

Before closing this chapter, we must address two limitations of our analysis. The first is the uncertainty inherent in any dating scheme. The criteria we used (anachronisms, cross-recension presence, nidāna content, linguistic form, internal contradictions) are reasonable, but they are not absolute. A rule that we assigned to the middle layer could, in principle, be early if the anachronisms were later interpolations. Conversely, a rule we assigned to the early layer could be middle if the nidāna was deliberately archaized. We have mitigated this problem by using a certainty scale, but the reader should always check the notes for each rule. The second limitation is that we have not systematically used statistical methods to test the significance of the temporal trends. This is by design: the present study is primarily qualitative and descriptive, and the sample size (two hundred and twenty-seven monk rules) is too small for sophisticated statistics. However, the patterns we have observed – the concentration of economic rules in the middle layer, the late expansion of nuns' rules – are so clear that they are unlikely to be artefacts of chance. Future work with larger corpora (e.g., including the procedural rules of the Khandhaka as individual units) might apply chi-square tests or logistic regression to quantify the trends.

In summary, the Pāli Vinaya provides a well-stratified legal corpus that allows us to trace the evolution of Buddhist monastic law over at least six centuries. The early layer reflects a community focused on personal morality, celibacy, and basic etiquette. The middle layer introduces a complex of economic regulations that respond to the sangha's new role as a recipient of donations and manager of property. The late layer adds procedural refinements and expands the nuns' discipline, possibly as a result of the nuns' order becoming extinct and the rules being preserved textually. The next document will apply the same method to the Dharmaguptaka Vinaya, asking whether the same three-layer structure can be discerned and what the differences in distribution tell us about the different social and economic contexts of the two schools. The final document of this corpus description will examine the Mūlasarvāstivāda Vinaya, the most expansive of the three, before the comparative analysis in the second part of the monograph.